

M/s R.B. Edibells Pvt. Ltd. v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 10 January 2019 · WRIT - C No. 702 of 2019 · **Writ petition dismissed; petitioner relegated to clause 6.5 remedy.**

HEADNOTE

A writ seeking quashing of a recovery certificate for electricity bill arrears is not entertained where clause 6.5 of the Electricity Supply Code, 2005 gives a remedy before the Executive Engineer; the petition is dismissed.

FACTUAL SUMMARY

M/s R.B. Edibells Pvt. Ltd. filed a writ in the Allahabad High Court seeking quashing of a recovery certificate dated 26 October 2018 for Rs. 12,67,958 as arrears of electricity bills. The recovery was to be made from the petitioner, with the Executive Engineer, Electric Distribution Khand, Dakshinanchal Vidyut Vitran Nigam Ltd., Purvi Baipas, Chhibramau, District Kannauj, as a respondent. After hearing counsel for the petitioner, the licensee, and the Standing Counsel, the Division Bench considered whether the writ should be entertained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery of electricity bill arrears — clause 6.5 remedy

HOLDING

A consumer challenging a recovery certificate for arrears of electricity bills has a statutory remedy of approaching the Executive Engineer under para 6.5 of the Electricity Supply Code, 2005; the writ petition is dismissed on that ground.

¶ 3-4

PRINCIPLE TAGS

clause-6.5-statutory-remedy Writ to quash a recovery certificate for electricity bill arrears was dismissed because para 6.5 of the Supply Code, 2005 supplies a remedy before the Executive Engineer. ¶ 3-4

billing-objection-to-executive-engineer-under-6.5 The Court directed the consumer to the Executive Engineer, Electric Distribution Khand, DVVNL, Chhibramau, as the clause 6.5 forum for the billing-arrears recovery. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CERTIFICATE DATED 26.10.2018 AND OF THE UNDERLYING ELECTRICITY BILL ARREARS OF RS. 12,67,958

The Court did not examine the bill or the recovery on merits. ¶ 3-4